evidences shall pass as things attendant upon the inheritance, and in truth they are the (*a*) sinews of the inheritance. So if I have a manor in which there is a park and fish-ponds, and I lease the manor, except the game of deer, and the fish, and afterwards I grant over the reversion, the grantee shall have the deer and the fish, as things attendant upon the inheritance; so not only those which have vegetative life, but all those which have sensitive life, shall go with the inheritance.

And it is resolved in (*b*) 14 Hen. 8. 25 b. in *Wistow's case* of Gray's Inn, that if a man has a horse-mill, and the miller takes the millstone out of the mill, to the intent to pick it to grind the better, although it is actually severed from the mill, yet it remains parcel of the mill, as if it had always been lying upon the other stone, and by consequence by the lease or conveyance of the mill it shall pass with it (Q): so of doors, windows, rings, &c. The same law of keys; although they are distinct things, yet they shall pass with the house; *a fortiori* in the case at the Bar, the trees which are growing out of the inheritance shall pass with it. And in the case at the Bar, it would be a great inconvenience if the trees should not pass with the inheritance; for in all the leases for life or years, made by the King, either of land within the survey of the Exchequer, or of the duchy, the trees are excepted; and if they should be reputed as chattels, or if they should not pass with the reversion as parcel of the inheritance, great inconvenience would ensue, although the trees are particularly granted. *Vide Swain's case*, in the Eighth Part of my Reports, fol. 63. *quod nota bene.*

As to the fourth and last objection, it was resolved, 1. That if the reversion had been conveyed over by the name of tenements, or of his reversion generally, without question the trees would pass; and although he covenanted to stand seised *de tenemen' præd' cum pertin' superius dimissis, &c.* yet the inheritance of the whole land passed, and by consequence the trees being parcel of the inheritance, shall pass with it, and the trees shall not pass as things demised, but as things annexed to the inheritance, notwithstanding that they are not demised.

And in the argument of this point these cases were cited, Paschæ 41 Eliz. in this Court, *inter* (*c*) the Lady Russel, plaintiff, and Gulwell, defendant, in an action of debt on a bond, where the case was, that the plaintiff by deed indented leased to the defendant a farm called D. except one close by name, and the lessee by the same indenture covenanted with the lessor to do divers things concerning the premises, and was bound in the said bond to perform all the covenants and agreements in the said indenture; **[51 a]** and if these words, "the premises," should extend to the close excepted, was the question, (*a*) (and Mountague, in *Dive and Manningham's case* held, that "the premises" should extend to the thing excepted). But it was (*b*) resolved, that in the principal case *præmissa* should not extend to the thing excepted, but are as much in effect as *prædimissa*. And (*c*) Pasch. 10 Eliz. one by deed indented demised certain land between Pond-meadow of the one part, and Todes-yard of the other part, and the lessee covenanted to repair the hedges about the premises; and (*d*) it was adjudged, that it should not extend to the abuttals, but *præmissa* should be taken in law as *prædimissa;* so in the case at Bar, *tenementa præd', et tenementa prædict' superius dimissa*, and *præmissa*, and (*e*) *prædimissa*, or *præconcessa*, are all one in judgment of law.

But Pasch. 36 Eliz. in this Court, *inter* the (*f*) Earl of Pembroke and Simons, (servant of Sir Henry Barkley) the case was, that the father of the plaintiff had granted to Sir H. Barkley the keeping of Staffordale-Walk, and of Brewcomb-Walk,

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(*a*) 5 Co. 74 b. 9 Co. 17 b. 1 Co. 1 b.
(*b*) Br. Distress 23. Co. Litt. 47 a. 1 Roll. 101. 1 Roll. Rep. 96.
(Q) So also it will pass by a devise of the mill. Per Holt, C.J. *Regina* v. *Wheeler*, 6 Mod. 187.
(*c*) 1 Roll. 431. 1 Roll. Rep. 102. Hob. 276.
(*a*) Plowd. 67 a.
(*b*) Cr. El. 657.
(*c*) Hob. 276. Case, Pasch. 10 Eliz. cited.
(*d*) Hob. 276.
(*e*) Cr. Car. 222.
(*f*) Cr. El. 781, 782. Hob. 276. 1 Roll. Rep. 102. 1 Roll. 422.

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in the forest of Fromeselwood, for the term of his life: the plaintiff by his deed did confirm the estate of the said Sir Henry in Brewcomb-Walk, and granted Staffordale-Walk to him and the heirs males of his body, with a proviso, that if he felled any trees in the premises, that then his estate should cease: and afterwards Sir H. felled trees in Brewcomb-Walk; and it was resolved that these words, "the premises," should extend to it, for the deed had operation in it by way of confirmation, and therefore there *præmissa* should be taken as well for (*g*) *præconfirmata* as *præconcessa*: but should not extend to any other part of the forest, although it was not named before, of which the deed has no operation. And the Chief Justice said, that as to cutting down of trees, grass, corn, and other things annexed to the soil, there are great variances of opinions in our books, not only against whom the action of trespass *vi et armis* shall be brought for recovery of damages, but also concerning the property of them. And therefore (*h*) if one disseises me, and during the disseisin he cuts down the trees, or grass, or the corn growing upon the land, and afterwards I re-enter, I shall have an action of trespass against him *vi et armis*, for the trees, grass, corn, &c. for after my regress, the law, as to the disseisor and his servants, supposes the freehold always continued in me; but if my (*i*) disseisor makes a feoffment in fee, gift in tail, lease for life or years, &c. and afterwards I re-enter, I shall not have trespass *vi et armis* against those who came in by title; for this fiction of the law, that the freehold continued always in me, shall not have relation to make him, who comes in by title, a wrong doer *vi et armis* (Q), for *in fictione juris semper æquitas existit*: but in such case I shall recover all the mean profits against my disseisor, in the same manner as the disseisee in such cases should recover in an assise at the **[51 b]** common law before the statute of Gloucester, cap. 1. damages only against the disseisor. Also it is to be presumed, that the feoffee has given consideration or recompence to the disseisor, and that the lessee has paid rent to him, or other consideration, and therefore in reason the disseisor is to be charged with the whole. The same law, if my disseisor is disseised, and afterwards I re-enter, I shall not have an action of trespass against the second disseisor, because the said fiction of law, as to action, extends only to my disseisor; and if I should punish the second disseisor, he would be twice charged; and therefore I shall recover all the mesne profits against my disseisor, his servants, and others who have committed the trespass by his command, and in his right; and so has the law been often taken upon consideration of all the books in 9 E. 3. 2 a. b. *Peter de Vanlore's case*, 10 H. 6. 14. 19 H. 6. 27. 22 H. 6. 21. 32 H. 6. 32. 33 H. 6. 46. 34 H. 6. 30. 37 H. 6. 35. 38 H. 6. 28. 2 E. 4. 18. 9 E. 4. 39. 11 E. 4. 4. 20 E. 4. 18. 21 E. 4. 5. & 74. 22 E. 4. 21. 6 H. 7. 9. 10 H. 7. 27. 12 H. 7. 25. 13 H. 7. 15 b. And all this is true *quoad actionem: sed quoad proprietatem* the regress of the disseisee revests the property in him, as well for the corn, as for the grass and trees, &c. and as well against the feoffee, lessee, &c. and the second disseisor, as against the disseisor himself; for the act of my disseisor may alter my action, but his act cannot take away my action, property, or right. And in this also there is great variety of opinions in our books; for some, as to the disseisor himself, have taken a difference between things which come by the act and operation of the disseisor himself (as if he sows the land, and afterwards reaps and carries the corn away, the disseisee, after his re-entry, cannot take it; for if he had not sowed the land, no corn had been

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(*g*) Cr. Car. 222. Lit. Rep. 145. 1 Anders. 236.

(*h*) Hob. 98. Kelw. 1 b. 2 Inst. 282, &c. 1 Roll. Rep. 100, 101. 2 Roll. 554. Owen 111, 112.

(*i*) 18 E. 4. 4 a. 1 Anders. 352. Godb. 388. 1 Roll. Rep. 101. Co. Lit. 150 a. Palm. 354.

(Q) According to *Halcome* v. *Rawlins*, Moore 461. S. C. [Cro. Eliz. 640. Owen 112.] Rolle's Ab. Trespass T. pl. 5. Com. Dig. Trespass B 2. there is no difference when he who enters mesne after the disseisin enters by title or by tort. The disseisee by his re-entry is remitted to his first possession, as if he never had been out of possession; and may maintain trespass *vi et armis* against the lessee, donee or feoffee of the disseisor, or against a second disseisor, or a stranger. *Contrà* per Hobart, C.J. *Moore* v. *Hussey*, Hob. 98. *Vid.* Vin. Ab. Trespass R 4. pl. 2.

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there, and it is for the advancement of tillage that the land should not lie fresh) and things which come by the act of God, as grass, trees, &c.

But upon consideration of all the books, it has been resolved and adjudged, that it is all one, and there is no diversity betwixt them; for the rule and reason of the law, as has been said, is, that after the regress of the disseisee, the law adjudges as to the disseisor himself, that the freehold has continued in the disseisee, which rule and reason doth extend as well to corn, as to trees or grass, &c. The same law, if the feoffee, or lessee, or the second disseisor, sows the land, or cuts down trees or grass, and severs, and carries away, or sells them to another, yet after the regress of the disseisee, he may take as well the (*a*) corn as the trees and grass, to what place soever they are carried; for the regress of the disseisee has relation as to the property, to continue the freehold against them all, in the disseisee *ab initio*, and the carrying them out of the land cannot alter the property; and if the disseisee **[52 a]** takes them, they shall be (*b*) recouped in damages against the disseisor; and so has it been often resolved and put in experience upon consideration of the books (*c*) in 27 H. 6. 1 a. 37 H. 6, 7 b. 12 E. 4, 5 a. 14 E. 4. 6 b. 15 E. 4. 31 a. b. 2 H. 7. 1 b. 3 H. 7. 1 & 6. 5 H. 7. 16. 12 H. 7. 25 a. 28 H. 8. Dyer 31 b. 1 Eliz. Dyer 173 a.

Lastly, it was resolved by the whole Court in the principal case, that (*d*) when the lessor excepted the trees, and afterwards had an intention to sell them, the law gave him, and them who would buy, power, as incident to the exception, to enter and shew the trees to those who would have them; for without sight none would buy, and without entry they could not see them. As in 9 H. 6. 29 b. (*e*) a man seised of a house in a borough, &c. deviseable, devised it to a woman in tail; and if the woman died without issue, that his executor might sell and dispose of it for his soul; in that case the executor might, by the law, enter into the house, to see if it was well repaired or not, to the intent to know at what value the reversion is to be sold, *quod fuit concessum per totam Curiam*, 43 Ass. pl. 7. The law gives power to him who ought to repair a bridge to enter into the land, and to him who has a conduit in the land of another, to enter into the land to mend it, when occasion requires it, as it is resolved in (*f*) 9 Ed. 4. 35 a. So it is agreed in 2 R. 2. Bar. 237. If I grant you my trees in my wood, you may come with carts over my land to carry the wood, *temp.* Ed. 1. Grants 41. *Lex est cuicunque aliquis quid concedit, concedere videtur, et id sine quo res ipsa esse non potuit*, and this is a maxim in law (R). *Vide* 5 E. 3. Trans. 13. 20 E. 3. Avowry 124. 8 E. 4, 5. 12 E. 4. 10. 18 E. 4. 14 b. 20 H. 6. 37. 21 H. 7. 14. b. 14 H. 8. 2 Plow. Com. in *Manxel's case*, fol. 13 b. *Vide* in my Reports, lib. 4. fol. 62. and lib. 5. 2 Part, fol. 11.

And as to the plea in bar, it was held, that it was without form, and without knowledge of good pleading, and that for four reasons. 1. The defendant pleads a lease for life of the tenements in which, to the plaintiff, and one Mary Parker, by force whereof they entered, and were, and yet are seised, &c. which is an averment of the life of Mary Parker, which upon the matter is, that the plaintiff has nothing in the tenements in which, &c. but jointly with M. Parker who is alive, not named in the writ, but concludes and demands judgment *si actio*, which is not well pleaded, for every plea ought to have an apt conclusion, and therewith agree 40 Ed. 3. 9 b.

(*a*) Dyer 31. pl. 219. Moor 24. Noy. 149. Co. Lit. 55 b. Hob. 132. 5 Co. 116 a. b. 85 a. Winch. 51. 1 Roll. 726, 727, 728. Cr. El. 61. 464. 27 H. 6. 1 a. Goldsb. 143, 144, 145. 12 H. 7. 25 a. 1 Roll. Rep. 100, 101. Br. Emblements 10. 17, 18. 20. 12 E. 4, 5 a. Perkins f. 100. 5 H. 7. 16 b. Br. Chattels 8. 10. 2 H. 7. 1 b. Dyer 173. pl. 15. Hughes's Ab. 794. 37 H. 6, 7 b. 15 E. 4. 31 a. b.

(*b*) 5 Co. 30 b.

(*c*) 1 Roll. Rep. 101. Dyer 31. pl. 219. Dyer 173. pl. 15.

(*d*) 2 Roll. 74. Plowd. 15 b. 16 a. Hob. 234. 2 Roll. 60. 5 Co. 12 a. Cr. El. 18. Touch. 100.

(*e*) Br. Tres. 16. Plowd. 13 b. *Manxel's case.*

(*f*) 5 Co. 12 a. 47 a. 115 b. 2 Bulst. 252. 12 Co. 13. 130. Co. Lit. 56 a. 153 a. 2 Inst. 306. Moor 218. Cawley 246. Hawk. Max. 258. 2 Sid. 39.

(R) *Vid.* Serjeant Williams's notes (5) (6) *Pomfret* v. *Ricroft*, 1 Saund. 322 b. and the authorities cited there.

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